



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIAN BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JANUARY 27, 2025 AT THE BARANGAY HALL OF BRILLANTE, PRIETO DIAZ, SORSOGON

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Rene Joseph D. Domasian	SKMF Pres./S.B. Member

ABSENT:

Hon. Joseph H. Yap, Jr.	S. B. Member/ on leave
Hon. Rodolfo E. Diolata	-do-

RESOLUTION NO. 022-2025

Introduced by the council

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO ENTER INTO A MEMORANDUM OF AGREEMENT WITH THE OFFICE OF THE PRESIDENTIAL ADVISER ON PEACE, RECONCILIATION AND UNITY (OPAPRU) REPRESENTED BY SECRETARY CARLITO G. GALVEZ, JR. FOR THE IMPLEMENTATION AND MONITORING OF PAMANA PROJECT FOR FY 2025 (CONCRETING OF SAN RAFAEL ROAD PHASE 6 COMPLETION) IN BRGY. SAN RAFAEL, PRIETO DIAZ, SORSOGON

WHEREAS, the Office of the Presidential Adviser on Peace, Reconciliation and Unity (OPAPRU) is the office mandated to manage, direct, integrate, and supervise the implementation of the comprehensive peace process through fostering reconciliation and unity among the Filipino people. The agency was created through Executive Order No. 125, s. 1993 which was later amended in 2001 with the signing of Executive Order No. 3, s. 2001 and Executive Order No. 158, s. 2021 as a reaffirmation of the government's commitment to achieving just and lasting peace through a comprehensive peace process;

WHEREAS, the PAYapa at MASaganang PamayaNan (PAMANA) Program is the national government's peace and development convergence program which forms an integral part of the Philippine Comprehensive Peace Process — directly and actively

contributing to the transformation and normalization program in the implementation of various peace agreements while ensuring the sustainability of project interventions in peace and development focus areas;

WHEREAS, under Chapter 9 on Peace and Security of the Philippine Development Plan (PDP) for 2011-2016 and Chapter 8 on Peace and Security of the updated PDP for 2011-2016 which indicated the PAYapa at MASaganang PamayaNAn (PAMANA) Program as the Government's development program for isolated, hard-to-reach, and conflict-affected and vulnerable communities. It was also embodied in Chapter 17 on Attaining Just and Lasting Peace of the updated PDP for 2017-2022 which included PAMANA in the Government's critical mechanisms for advancing the protection and development of conflict-affected areas;

WHEREAS, the PAMANA Program is affirmed in Chapter 13 of the latest PDP 2023-2028 to Ensure Peace and Security and Enhance Administration of Justice, particularly in Outcome I: conflict-affected communities and conflict-vulnerable areas protected and development sustained, ensuring the "rehabilitation and catch-up development of communities through the implementation of various interventions;"

WHEREAS, the Program is likewise confirmed to support the Five-Point Peace, Reconciliation and Unity Agenda of the OPAPRU, particularly on Agenda 5 on the "enhancement of the delivery of conflict-sensitive and peace-promoting (CSPP)-compliant development interventions in addressing the key drivers of conflict through convergence and complementation in support of the peace process;"

WHEREAS, the PAMANA Program aims to contribute in (1) improving the socio-economic conditions in conflict-affected and conflict-vulnerable areas as well as in areas Covered by Peace Agreements through focused delivery of services; (2) enhancing of capacities of national government agencies and local governments for pursuing conflict sensitive, peace-promoting, and gender-sensitive approach to development; and, (3) empowering of communities and strengthening their capacities to address issues of conflict and peace through activities that promote social cohesion;

WHEREAS, to facilitate the implementation of Fiscal Year 2025 PAMANA project and in recognition of the significant role of local government units in peacebuilding, the OPAPRU shall partner with the Municipal Local Government of Prieto Diaz, Sorsogon for the implementation of the PAMANA project in its jurisdiction, particularly, the Concreting of Barangay San Rafael Road (Phase 6 Completion) - Brgy. San Rafael, Prieto Diaz Sorsogon;

WHEREAS, the OPAPRU shall, among others, transfer funds directly to the MLGU for the implementation of abovementioned PAMANA Project in the total amount of P 50,000,000.00;

WHEREAS, the MLGU shall, submit the complete and accurate documentary requirements to facilitate the release of funds and utilize funds released by the OPAPRU solely and exclusively for the implementation of the project;

WHEREAS, on motion of Hon. Juan Ebid, duly seconded by Hon. Alice Emano and Hon. Albert Destura;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian, to enter into a Memorandum of Agreement with the Office of the Presidential Adviser on Peace, Reconciliation and Unity (OPAPRU) represented by Secretary Carlito G. Galvez, Jr. for the implementation and monitoring of PAMANA project for FY 2025 (Concreting of San Rafael Road Phase 6 Completion) in Brgy. San Rafael, Prieto Diaz, Sorsogon;

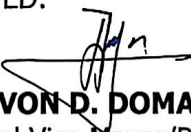
FINALLY RESOLVED, to transmit this resolution to Hon. Romeo D. Domasian, Municipal Mayor, copy furnished Hon. Michael D. Dichoso, Punong Barangay of San Rafael; Ms. Gemma Ferrer, Municipal Treasurer; Mr. Roderick Domasig, MPDC; Engr. Exequiel Destura, Municipal Engineer; Ms. Maribel Aldon, Municipal Accountant; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

MEMORANDUM OF AGREEMENT

KNOWN ALL MEN BY THESE PRESENTS:

This Memorandum of Agreement is entered into this _____ by and between:

The **OFFICE OF THE PRESIDENTIAL ADVISER ON PEACE, RECONCILIATION AND UNITY (OPAPRU)**, a national agency existing under the laws of the Philippines, with office address at 7th Floor Agustin I Bldg., F. Ortigas Jr. Road, Ortigas Center, Pasig City herein represented by **SECRETARY CARLITO G. GALVEZ, JR.**, hereinafter referred to as "**OPAPRU**";

-and-

The **MUNICIPAL LOCAL GOVERNMENT UNIT (MLGU) OF PRIETO DIAZ, SORSOGON** with office address at Poblacion, Prieto Diaz, Sorsogon represented by **MAYOR ROMEO D. DOMASIAN** by virtue of Municipality of Prieto Diaz Sangguniang Bayan Resolution No. _____, hereinafter referred to as "**MLGU**";

(collectively referred to as the "Parties")

-WITNESSETH-

WHEREAS, the **Office of the Presidential Adviser on Peace, Reconciliation and Unity (OPAPRU)** is the office mandated to manage, direct, integrate, and supervise the implementation of the comprehensive peace process through fostering reconciliation and unity among the Filipino people. The agency was created through Executive Order No. 125, s. 1993 which was later amended in 2001 with the signing of Executive Order No. 3, s. 2001 and Executive Order No. 158, s. 2021 as a reaffirmation of the government's commitment to achieving just and lasting peace through a comprehensive peace process;

WHEREAS, the **MLGU** is a local government unit under Republic Act No. 7160, exercising such powers and discharging functions and responsibilities as are necessary, appropriate, or incidental to efficient and effective provisions of the basic services and facilities intended primarily to service the needs of the residents of the municipality, which includes among others, infrastructure facilities;

WHEREAS, the **PAYapa at MASaganang PamayaNAN (PAMANA) Program** is the national government's peace and development convergence program which forms an integral part of the Philippine Comprehensive Peace Process – directly and actively contributing to the transformation and normalization program in the implementation of various peace agreements while ensuring the sustainability of project interventions in peace and development focus areas;

WHEREAS, under Chapter 9 on Peace and Security of the Philippine Development Plan (PDP) for 2011-2016 and Chapter 8 on Peace and Security of the updated PDP for 2011-2016 which indicated the **PAYapa at MASaganang PamayaNAN (PAMANA) Program** as the Government's development program for isolated, hard-to-reach, and conflict-affected and vulnerable communities. It was also embodied in Chapter 17 on Attaining Just and Lasting Peace of the updated PDP for 2017-2022 which included **PAMANA** in the Government's critical mechanisms for advancing the protection and development of conflict-affected areas;

WHEREAS, the PAMANA Program is affirmed in Chapter 13 of the latest PDP 2023-2028 to Ensure Peace and Security and Enhance Administration of Justice, particularly in Outcome 1: conflict-affected communities and conflict-vulnerable areas protected and development sustained, ensuring the “rehabilitation and catch-up development of communities through the implementation of various interventions;”

WHEREAS, the Program is likewise confirmed to support the Five-Point Peace, Reconciliation and Unity Agenda of the **OPAPRU**, particularly on Agenda 5 on the “enhancement of the delivery of conflict-sensitive and peace-promoting (CSPP)-compliant development interventions in addressing the key drivers of conflict through convergence and complementation in support of the peace process;”

WHEREAS, the PAMANA Program aims to contribute in (1) improving of socio-economic conditions in conflict-affected and conflict-vulnerable areas as well as in areas covered by Peace Agreements through focused delivery of services; (2) enhancing of capacities of national government agencies and local governments for pursuing conflict-sensitive, peace-promoting, and gender-sensitive approach to development; and, (3) empowering of communities and strengthening their capacities to address issues of conflict and peace through activities that promote social cohesion;

WHEREAS, to facilitate the implementation of Fiscal Year 2025 PAMANA project and in recognition of the significant role of local government units in peace-building, the **OPAPRU** shall partner with the **MUNICIPAL LOCAL GOVERNMENT OF PRIETO DIAZ, SORSOGON** for the implementation of the PAMANA project in its jurisdiction;

NOW THEREFORE, in consideration of the above premises, the parties hereby agree on the following terms and conditions:

ARTICLE I PURPOSE

Section 1. The purpose of this **MOA** is to define the mutual and agency-specific roles and responsibilities, as well as the institutional arrangements for collaboration and partnership between the PARTIES for the implementation of the PAMANA Program for FY 2025 in the **Municipality of Prieto Diaz, Sorsogon**.

ARTICLE II SITUS OF COLLABORATION

Section 1. This **MOA** shall cover the implementation *and Monitoring of the PAMANA Project with its corresponding project cost:*

No.	Project Title	Project Cost (PhP)
1	Concreting of Barangay San Rafael Road (Phase 6 Completion) - Brgy. San Rafael, Prieto Diaz, Sorsogon	50,000,000.00

ARTICLE III INSTITUTIONAL ARRANGEMENT

Section 1. The **OPAPRU** shall:

A. Financial Management

- A. 1. Transfer funds directly to the **MLGU** for the implementation of abovementioned PAMANA project in the Municipality of Prieto Diaz, Sorsogon, based on the following conditions and requirements:

Tranche	Percentage	Condition
1 st Tranche	80%	Upon MOA/Contract signing and full compliance to pre-project implementation documentary requirements
2 nd Tranche	20%	Upon 100% physical and financial completion, submission of liquidation reports for the 1 st tranche, and full compliance to post-project implementation documentary requirements

- A. 2. Transfer of funds to the **MLGU** in accordance with the Commission on Audit (COA) Circular No. 94-013 dated 13 December 1994 and COA Circular No. 2012-001 dated 14 June 2012;

- A. 3. Ensure submission by the **MLGU** of the following reportorial requirements:

- a. Progress Reporting: (i) Quarterly Project Status Report with Statement of Work Accomplished showing physical accomplishment, duly signed by appropriate LGU staff and approved by Local Chief Executive (LCE) and verified by Civil Society Organizations (CSO) partners; and (ii) Quarterly Statement of Receipts and Disbursement (SORD)/Statement of Expenditure (SOE) duly signed by the Treasurer/Accountant and the Auditor attesting to the release of funds; and
- b. Project Completion: (i) Project Status Report with Statement of Work Accomplished showing 100% physical accomplishment, Certificate of Completion/Turn-over and Acceptance, if applicable, duly signed by appropriate LGU staff and approved by LCE and verified by the CSO partners; (ii) Statement of Receipts and Disbursement (SORD)/Statement of Expenditure (SOE) duly signed by the Treasurer/Accountant and the Auditor attesting to 100% release of funds; and, (iii) LGU shall submit Audit Inspection Report Operations and Sustainability Plan.

B. Procurement

Ensure that procurement of goods, works and services for the projects shall be in accordance with the provisions of Republic Act No. 9184 or the Procurement Law and its Implementing Rules and Regulations.

C. Project Management, Monitoring and Reporting

- C. 1. Ensure that project implementation adheres to the conflict-sensitive and peace-promoting approach;
- C. 2. Assign and/or designate a Project Management Team (PMT) to closely monitor and coordinate the project implementation in coordination with the **MLGU**;
- C. 3. Undertake regular monitoring as a basis for the provision of technical assistance to the **MLGU** relative to PAMANA project implementation;
- C. 4. Ensure the documentation and reporting of the physical and financial progress of project implementation using the reporting tools from the **OPAPRU** (*Attached as Annex A are the Reporting Templates*);

- C. 5. Resolve issues and concerns that are directly reported to the **OPAPRU** arising from the implementation of the project covered by this **MOA** taking into consideration the recommendation of the **OPAPRU**;
- C. 6. Conduct with the **MLGU** a Joint Implementation Review of projects covered by this **MOA** to determine the impact and outcome of the projects;
- C. 7. Issue a Certificate of Completion when project implementation under this **MOA** is completed to the satisfaction and full acceptance of the **OPAPRU**; and
- C. 8. Issue a Certificate of turnover to the **MLGU** after full and final physical completion of the project, and the conduct of the required review as stated in item C.6 herein.

Section 2. The MLGU shall:

A. Financial Management

- A. 1. Submit the complete and accurate documentary requirements to facilitate the release of funds with the schedule of fund release under Article III, Section 1, Sub-section A.1 of this **MOA**;

Tranche	Percentage	Documentary Requirement
1 st Tranche	80%	▪ Duly executed Memorandum of Agreement (MOA) between OPAPRU and MLGU ▪ Duly approved Project Proposal with plans for social preparation, operations and maintenance, and sustainability ▪ Approved Work and Financial Plan ▪ Signed digital geo-tagged photos of the proposed project site ▪ Program of Works ▪ Detailed Engineering Design ▪ Copy of the Sangguniang Resolution authorizing the Mayor to sign the MOA ▪ Certification on the Opening of Special Account ▪ Certified Copy of the EO on the designation of the Focal Person ▪ Copy of Endorsement of local bodies identifying the project/s to be implemented in the community, as needed ▪ Road Right of Way Certification ▪ Deed of Donation/Certificate of Land Availability/Usufruct Agreement, whichever is applicable ▪ Clearances (e.g., ECC-Environmental Clearance Certificate from DENR, FPIC- Free Prior Information Consent from NCIP, MGB-Mines and Geoscience Bureau from DENR, PAMB-Protected Areas Management Bureau from DENR, Water Potability Test from DOST/DOH/PHO, CNC Certificate of No Coverage from DENR), as applicable

2 nd Tranche	20%	▪ Copy of duly executed service or supply contract between the implementing partner and contractor ▪ 100% liquidation of the funds transferred as indicated in the liquidation report ▪ 100% physical accomplishment as certified by the local chief executive and validated by OPAPRU ▪ Minutes of Exit Conference ▪ Certificate of Completion ▪ Certificate of Turnover ▪ Certificate of Acceptance ▪ Copy of required physical and financial reportorial documents of the first tranche duly received by COA ▪ Updated Operations and Maintenance and Sustainability Plans ▪ Signed digital geo-tagged photos of completed project ▪ Project/Community Billboard
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- A. 2. Open a bank account exclusively intended for the management of PAMANA funds released by the **OPAPRU**;
- A. 3. Provide **OPAPRU** with bank account details to facilitate payment and documentation of the funds into **OPAPRU**'s records;
- A. 4. Accept and issue Official Receipts for the funds transferred by the **OPAPRU**;
- A. 5. Maintain a separate subsidiary record/ledger for fund transfers;
- A. 6. Use the funds released by the **OPAPRU** **solely and exclusively** for the implementation of the projects;
- A. 7. Keep and maintain financial and accounting records for the PAMANA funds in accordance with the generally accepted accounting and auditing principles;
- A. 8. Ensure proper disbursement of funds for the implementation of the projects, in accordance with COA rules and regulations;
- A. 9. Submit to the **OPAPRU** the following:
 - a. Progress Reporting: (i) Quarterly Project Status Report with Statement of Work Accomplished showing physical accomplishment, duly signed by appropriate LGU staff and approved by LCE and verified by CSO partners; and (ii) Quarterly Statement of Receipts and Disbursement (SORD)/Statement of Expenditure (SOE) duly signed by the Treasurer/Accountant and the Auditor attesting to the release of funds;
 - b. Project Completion: (i) Project Status Report with Statement of Work Accomplished showing 100% physical accomplishment, Certificate of Completion/Turn-over and Acceptance, if applicable, duly signed by appropriate LGU staff and approved by LCE and verified by the CSO partners; (ii) Statement of Receipts and Disbursement (SORD)/Statement of Expenditure (SOE) duly signed by the Treasurer/Accountant and the Auditor attesting to 100% release of funds; and, (iii) MLGU shall submit Audit Inspection Report Operations and Sustainability Plan.

- A. 10. Make available all records and files to the **OPAPRU** pertaining to transactions involving the PAMANA funds upon request for whatever legal purpose it may serve;
- A. 11. Return to the **OPAPRU** any unused funds or savings generated after the project completion; and
- A. 12. Acknowledge that the **OPAPRU** has made no actual or implied promise of funding except as agreed herein. If any portion of the fund is returned to the **OPAPRU** or if this **MOA** is rescinded for any valid reason, the **MLGU** shall also acknowledge that the **OPAPRU** shall have no further obligation to the former as a result of such return or rescission;

B. Procurement

- B. 1. Handle the procurement of goods, works and services for the projects; and
- B. 2. Ensure that the procurement of goods, works and services for the projects shall be in accordance with the provisions of Republic Act No. 9184 or the Procurement Law and its Implementing Rules and Regulations.

C. Project Management, Monitoring and Reporting

- C. 1. Ensure conduct of social preparation;
- C. 2. Ensure that project implementation adheres to the conflict-sensitive and peace-promoting approach;
- C. 3. Assign and/or designate a PMT to closely administer the project implementation in coordination with the **OPAPRU**;
- C. 4. Assign and/or designate focal person/s to serve as coordination contact point/s of **OPAPRU**;
- C. 5. Implement and monitor the projects with funding support in accordance with existing and applicable mechanisms of the PAMANA Program (*Attached as Annex B is the Implementation Guidelines*);
- C. 6. Ensure the documentation and reporting of the physical and financial progress of project implementation using the reporting tools from the **OPAPRU** (*Attached as Annex A are the Reporting Templates*);
- C. 7. Submit a quarterly status report (both physical and financial) five (5) days before the end of every month and a quarterly project status update on PAMANA implementation every 20th of the last month of every quarter;
- C. 8. Resolve issues and concerns that are directly reported to the **OPAPRU** arising from the implementation of the projects covered by this **MOA** taking into consideration the recommendation of the **OPAPRU**;
- C. 9. Conduct with the **OPAPRU** a Joint Implementation Review of projects covered by this **MOA** to determine the impact and outcome of the projects;
- C. 10. Make available and/or provide upon request necessary and relevant information and technical documents on all the projects that are determined and agreed upon by the **OPAPRU** and **MLGU**;

- C. 11. Partner with other local, national and international organizations/agencies, non-government organizations, civil society organizations and peoples organizations in the project implementation, as deemed necessary; and
- C. 12. Ensure delivery of the projects on schedule and as specified under Article VI of this MOA.

ARTICLE IV TRANSPARENCY AND ACCOUNTABILITY

Section 1. The Parties agree that compliance with all the requirements of the law and existing rules and regulations shall be ensured.

Section 2. The Parties agree to employ the following PAMANA Transparency and Accountability Mechanisms (TAM), as applicable: (1) adherence to performance-based fund release; (2) installation of community billboards; (3) feedback and report system; (4) web posting of progress reports; and (5) engagement of CSOs/NGOs and/or Citizen-led monitoring team as Third Party validators.

Section 3. In cases where the Third Party Monitor will be engaged, their monitoring activities shall be based in accordance with the guidelines to be provided by OPAPRU.

Section 4. The OPAPRU reserves the right to impose other measures or processes that will ensure the transparency of the projects and accountability of its concerned implementing units, in accordance with the general principles of good governance.

Section 5. In cases where the Third Party Monitor has raised issues on the result of a bidding process, such issue shall be resolved using the provisions stipulated under the Procurement Law.

Section 6. In case any issue on the project implementation is raised, the OPAPRU may exercise its visitatorial power and be granted by the MLGU full and uninterrupted access to all documents to resolve such issue at any time. This power shall include unbridled access to the project site and its direct and adjacent community beneficiaries, whenever deemed necessary, as guaranteed by the MLGU.

ARTICLE V WARRANTY AND LIABILITY

Section 1. OPAPRU, as the party that will provide fund support to the project shall, at all times, not be made liable for damages or injuries, intentional or otherwise, inflicted against the workers of its building, employees of the LGUs, contractors engaged by the MLGU, or their parties, caused by the building, destruction, usage, loss, or natural calamities, to the MLGU or third party.

Moreover, OPAPRU shall not be made liable and answerable for any claims involving the rightful ownership and/or possession of the property where the project will be installed. The MLGU therefore warrants that the real property where the project will be installed is free from any claim, lien, and encumbrances from ownership, possession, and utilization of the property and ensures the continued and free use and access of the completed project to the public.

Section 2. The MLGU beneficiary shall be the party responsible for the maintenance of the project in ensuring that the same will be in its safe and usable condition upon turnover of the project. OPAPRU, therefore, immediately after the formal turnover of the project, shall not in any way be made responsible for the maintenance of the project.

ARTICLE VI ANTI-GRAFT AND CORRUPT PRACTICES ACT

Section 1. The Parties shall not, in any way, unduly benefit from this **MOA**, and shall at all times adhere to Republic Act No. 3019 or the the Anti-Graft and Corrupt Practices Act, as amended.

ARTICLE VII EFFECTIVITY AND PERIOD OF AGREEMENT

Section 1. This **MOA** shall take effect upon signing hereof by the Parties and shall remain valid and effective until the projects are completed on or before 31 December 2025, unless otherwise revoked earlier by both Parties.

ARTICLE VIII AMENDMENT/REVISION

Section 1. No amendment or modification to this agreement shall be effective unless it is in writing and signed by duly authorized representatives of both parties.

ARTICLE IX SETTLEMENT OF DISPUTES

Section 1. Any disagreement in the implementation of the plans and provisions of this **MOA**, or any agreement related thereto, shall be settled amicably between the Parties. In case of other disputes, may arise from this Agreement involving but not limited to a demand for the specific performance of a Party's obligations or an interpretation of any of the provisions, shall first be settled amicably within thirty (30) calendar days from such demand. Should the dispute remain unresolved at the end of such period, it shall be submitted for arbitration under Sections 66071, Chapter 14, Book IV, Title III of the Administrative Code of 1987 (Executive Order No. 292), in relation to Presidential Decree No. 242 (Prescribing the Procedure for the Administrative Settlement of Claims and Controversies Between or Among Government-Owned and Controlled Corporations, and for Other Purposes) to the Office of the Government Corporate Counsel pursuant to Section 2.2., Rule 2, of the 2015 Uniform Rules on Dispute Resolution under PD No. 242.

Section 2. Any dispute on the content of this **MOA**, which is not disposed of by agreement between the Parties, shall be decided by **OPAPRU**, provided a written copy of the decision shall be furnished to the **MLGU**.

ARTICLE X PENALTY CLAUSE

Section 1. The **OPAPRU** may suspend/withhold the release of the 20% final tranche if it was found out during the conduct of review and monitoring activities that the procurement of any contract is inconsistent with RA 9184 and its IRR.

Section 2. The **OPAPRU** may totally not release the 20% final tranche in any of the following instances:

- A. Failure of the **MLGU** to finish the project/s on the deadline provided under Article VI of this **MOA**, without justifiable reason; or

- B. Failure of the **MLGU** to submit the complete documentary requirements (i.e. liquidation reports) on the deadline provided in this **MOA**.

Section 3. Failure on the part of the **MLGU** to comply with any provision of this **MOA** may warrant its revocation and shall give rise to the filing of appropriate administrative, civil, and criminal case against the responsible party except in cases where:

- A. It is able to promptly notify in writing of the occurrence of any event or condition which may reasonably delay the progress or prevent the completion of this **MOA**, in whole or in part, as soon as the facts became known. A penalty shall be deducted by **OPAPRU** from the scheduled payment, for every month of delay in the submission of deliverables. The penalty shall be computed as 5% of the corresponding amount due from **OPAPRU** for the specific output; and
- B. It is able to promptly notify in writing the occurrence of any force majeure affecting this **MOA**, to the extent that would make impossible or impracticable for it to carry out, in whole or in part, its obligations in this **MOA**. The term "force majeure" shall mean events that can be attributed to causes specified hereunder:
- i. Natural causes such as earthquake, typhoons, floods, epidemics or other analogous or similar causes; and
 - ii. Human causes such as revolutions, insurrections, blockages, riots, civil disturbances, court injunctions, strikes, and other analogous or similar causes.

Section 4. In case the **MOA** is terminated due to any of the above-enumerated reasons, the **MLGU** shall return the unexpended balance of the released portion of the funds or the pertinent portion related to the cancelled component, whichever applicable.

IN WITNESS WHEREOF, the parties hereto have signed this **MEMORANDUM OF AGREEMENT** on this _____ day of _____ 2025 in _____.

**OFFICE OF THE PRESIDENTIAL
ADVISER ON PEACE,
RECONCILIATION AND UNITY**

**MUNICIPAL LOCAL GOVERNMENT
OF PRIETO DIAZ, SORSOGON**

BY:

BY:

CARLITO G. GALVEZ, JR.
Secretary

ROMEO D. DOMASIAN
Municipal Mayor

WITNESSES:

WITNESSES:

ATTY. WILBEN M. MAYOR
Presidential Assistant for
Local Conflict Transformation